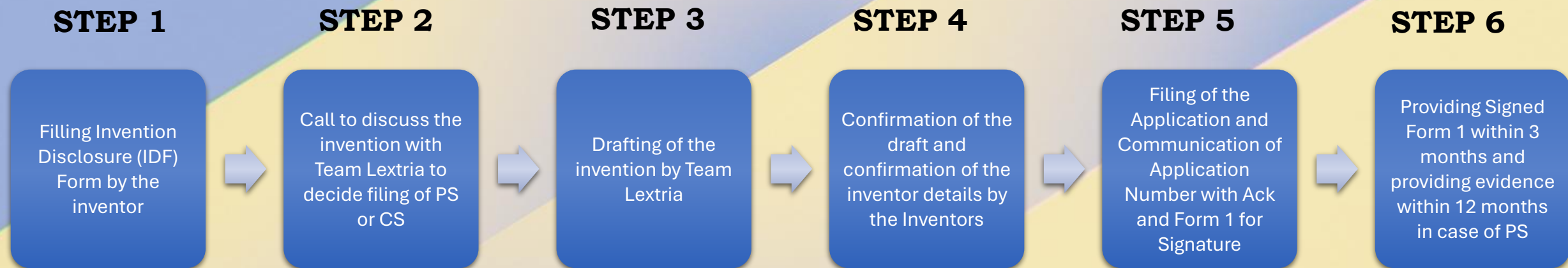


PATENT INFORMATION DOCUMENT

LEXTRIA
RESEARCH

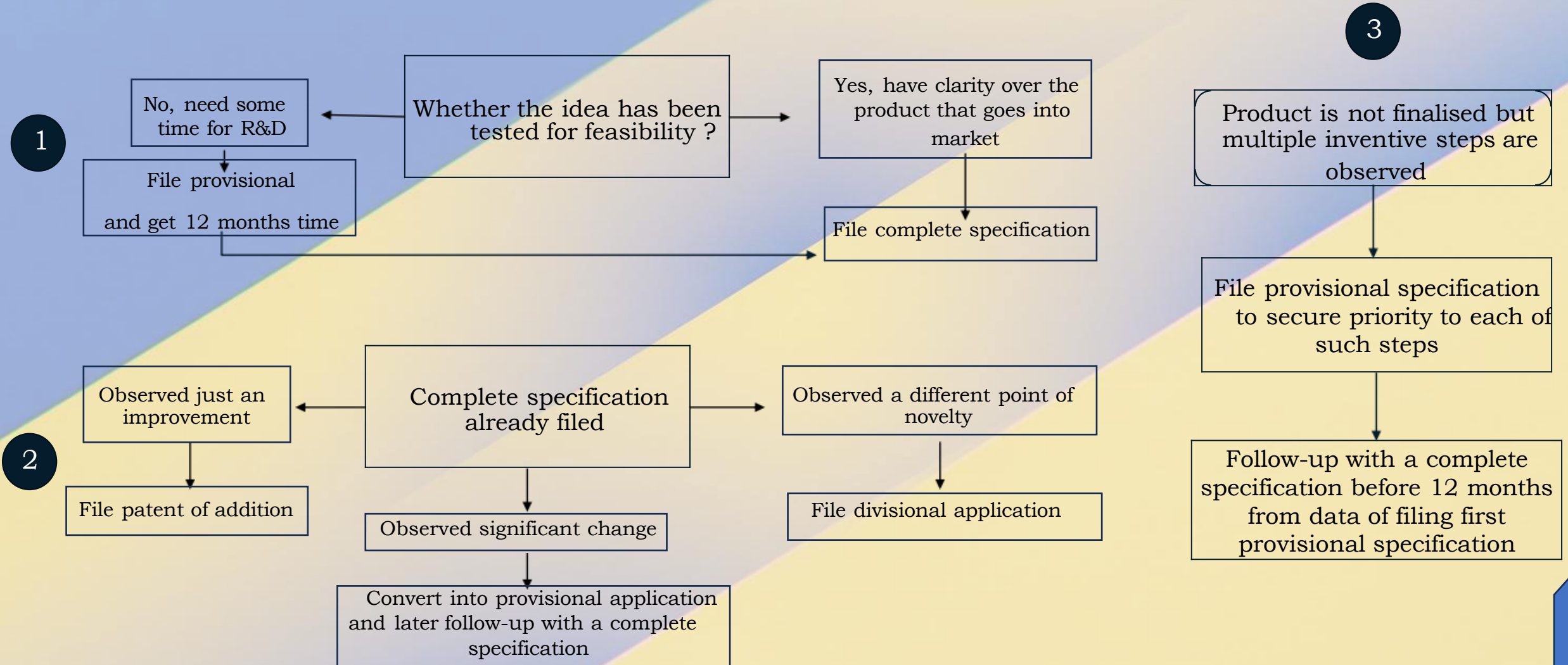


STEPS FOLLOWED BY LEXTRIA RESEARCH TO DRAFT AND FILE AN APPLICATION



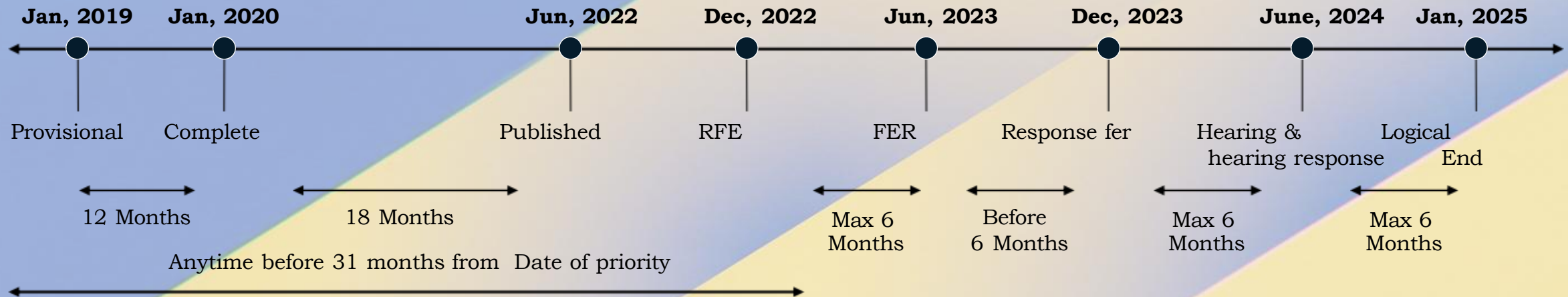
PS - Provisional Specification
CS - Complete Specification

TESTS FOR SELECTING A PATENT APPLICATION



PATENT CYCLE - EXEMPLARY SCENARIO:

LEXTRIA
RESEARCH



Note:

1. Date of priority is date of filing provisional application. In case complete specification is directly filed, date of priority is date of filing of the complete specification.
2. RFE: Request For Examination has to be paid before 31 months from date of priority.
3. FER: First Examination Report shall be issued anytime before 6 months if RFE is already filed.
4. In case of early publication, the timeline of publication is not defined by law, and totally depends upon patent office and the queue is not available/known to general public or attorneys.
5. Expedited examination is available only for Start-ups, SMEs, female applicants, Govt depts. and those who made India as search authority in foreign filings. In case of Expedited Examination, it takes about half the time as normal proceedings.
6. Logical End may include Grant/Refusal. In case of refusal, filing review petition.
7. RFE, Early publication, Expedited examination have stipulated govt. fees as discussed in the Schedule of Fees.

SOME Keywords



APPLICANT	INVENTOR
Applicant may be a Legal person or a natural person	Inventor should always be a natural person
PROVISIONAL SPECIFICATION	COMPLETE SPECIFICATION
Provisional specification is filed with limited information to secure the concept and priority date before any possible public disclosure	Complete specification is filed with best possible information and evidence of validation to secure grant
First Examination Report (FER)	HEARING
It is a first communication from patent office, and includes certain objections observed by the patent office and to be complied with in 6 months in writing	It is an opportunity to defend the application via placing oral arguments, and it shall be the final stage

SOME FAQs



Sl. No	QN	ANS
1	What would happen if complete specification is not filed after provisional specification?	The Application would be abandoned, the priority would be lost. However, it shall not affect novelty so it can be refiled.
2	Can time to file complete specification be extended ?	Yes, it can be extended upto 6 month with fees and with lose of priority.
3	How much time it might take for the patent to be published and granted ?	It takes about 18 months for the patent to be published in case of early publication with fees, it might take about 1 month untill then the Application is confidential. It might take about 12 to 30 months for the patent to be granted.
4	Is it compulsory for to do a prototype ?	As per patent act, its important to provide best method of working and evidance of working. It may or may not be prototype. However, in case if it is asked by patent office it may be a necessity.